

25SMCV05736 25SMCV05736

County: los-angeles

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Case Number: 25SMCV05736 Hearing Date: September 8, 2026 Dept: N

TENTATIVE ORDER

Defendants and Cross-Complainants Patrick Crowley and Cathleen Summers's Motion to Compel Arbitration and Stay Action is GRANTED.

The proceedings are hereby STAYED pending the outcome of arbitration.

Defendants and Cross-Complainants Patrick Crowley and Cathleen Summers to give notice.

The Court finds that Defendants have met their initial burden. Defendants state that the parties entered into a rider to their original construction agreement, and the rider states in relevant part:

The parties shall endeavor to resolve any claims, disputes, or other matters in controversy arising out of or related to this Agreement ('Claims') by mediation and arbitration which, unless the parties mutually agree otherwise, shall be administered by JAMS Dispute Resolution Services, Inc. ('JAMS') in West Los Angeles, California. A request for mediation shall be made in writing, delivered to the other party to this Agreement, and filed with the person or entity administering the mediation. The request may be made concurrently with the filing of binding dispute resolution proceedings but, in such event, mediation shall proceed in advance of binding dispute resolution proceedings.

(Compl., Ex. 1 – a copy of the Agreement, "Owner's Rider to Standard Short Form of Agreement Between Owner and Contractor," Section 24; Motion, p. 2:17-27; Declaration of Gregory M. Bordo ("Bordo Decl.") ¶ 2.) The Court notes that the rider contains signatures attributed to the parties. Defendants also state that the parties engaged in mediation before the filing of this action. (Motion, p. 2:13-15; Bordo Decl. ¶ 6.) Lastly, the language of the agreement is broad and covers the parties' claims. Given those facts, Defendants have met their initial burden of proving the existence of a valid agreement to arbitrate the claims in this action.

"If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (Gamboa, supra, 72 Cal.App.5th at p. 165.) "The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (Ibid.) The opposing party must also prove, by a preponderance of evidence, a defense to enforcement of the agreement. (Rosenthal v. Great Western Financial Securities Corp. (1996) 14 Cal.4th 394, 413.)

Here, Plaintiff has not submitted an opposition to the motion and consequently failed to challenge the authenticity of the arbitration agreement or to show that the agreement is unenforceable.

Therefore, the Court grants the request to compel the parties' dispute to arbitration.

"If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.)

The Court grants Defendants' request for stay pursuant to statute.

For those reasons, Defendants and Cross-Complainants Patrick Crowley and Cathleen Summers's unopposed Motion to Compel Arbitration and Stay Action is GRANTED. The proceedings are hereby STAYED pending the outcome of arbitration.